



Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: nhanekom@judiciary.org.za
Cc: jason.whyte@deney.co.za, frances.barker@deney.co.za, olebogeng.motlhaping@deney.co.za
Bcc: Sr Wilbur William Matthee <g.boy.willy@gmail.com>

Mon, 20 Apr 2026 at 11:55

To:
The Registrar, High Court of South Africa, Western Cape Division
[Registrar email address]

Cc:
Jason Whyte (Deneys Attorneys) – jason.whyte@deney.co.za
Frances Barker / Olebogeng Motlhaping (as copied in annexures) – [email addresses if available]

Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

Dear Honourable Registrar,

I refer to the above matter and write in my capacity as the Respondent, acting in person.

1. Filing of Supplementary Answering Affidavit and Counter-Application

Pursuant to Uniform Rule 6(5)(e) and the practice confirmed in Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC), I hereby file the following documents with this Honourable Court:

- Supplementary Answering Affidavit (Final Consolidated) – responding to the Applicant’s founding papers and incorporating a counter-application for declaratory relief;
- Notice of Counter-Application for Declaratory Relief – which is unconditional and will proceed independently even if the Applicant withdraws its main application;
- Index of Annexures containing 22 supporting exhibits as referenced in the affidavit.

These documents are served simultaneously on the Applicant’s attorneys, Deneys.

2. Request to Enroll Counter-Application with Main Application

I respectfully request that the counter-application be enrolled for hearing simultaneously with the main application under the same case number, or on such other date as this Honourable Court may determine. In the event the main application is withdrawn, I request that the counter-application proceed on its own.

The declaratory relief sought is not abstract or hypothetical – it will:

- Break the administrative deadlock with the Department of Employment and Labour regarding my UIF benefits;
- Establish facts binding on the Labour Court through res judicata and estoppel;
- Vindicate my good faith and professional reputation, which the Applicant has attacked under oath.

3. Service on the Applicant’s Attorneys

A copy of this email and all filed papers is served on Deneys Attorneys at the email address above.

4. Request for Acknowledgment

Kindly acknowledge receipt of these filings and confirm the date on which the consolidated matter (main application + counter-application) will be placed on the roll.

I remain destitute, self-represented, and without income. My full circumstances are set out in Annexure WW6 (Affidavit of Destitution) filed herewith.

If your client fails to produce the documents by the above deadline without a valid, sworn explanation (e.g., legal privilege or impossibility), I will, without further notice, immediately file a notice to anticipate the return day in terms of:

- Uniform Rule of Court 6(8); and
- Paragraph 7 of the interim order dated 16 April 2026, which expressly grants me leave to anticipate the return day upon 24 hours' written notice to the applicant.

Upon anticipation, I will move for an order:

- Discharging the rule nisi and setting aside the interim interdict in its entirety;
- Granting the declaratory relief sought in my counter-application;
- Awarding a punitive costs order against your client on the scale as between attorney and client.

Your client has until Friday close of business to comply. Failure to do so will result in immediate court action.

Thank you for your assistance.

IMPORTANT NOTICE REGARDING MY EMAIL ADDRESS

Please be advised that my email address info@ethichawks.co.za has been suspended and is no longer active. All formal correspondence, including the documents demanded below, must be sent to my alternative email address:

wilburmat@gmail.com

I confirm that I will monitor this address for your response. Any correspondence sent to the suspended EthicHawks address will not be received.

Yours Professionally,

Wilbur William Matthee
Respondent (acting in person)
15 Bellevue Street, Voorbrug, Cape Town, 7001
Email: wilburmat@gmail.com
Mobile: 069 635 1435

Copy to: Jason Whyte, Deneys Attorneys (via email)

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